to recommend granting certain rights to queer couples like having joint bank accounts, adding each other as nominee in insurance claims, signing as guardian or partner in hospitals, etc.

What the majority verdict said

1. No to civil union: A "civil union" refers to a legal status whereby cohabitating couples are allowed certain rights and responsibilities normally conferred upon married couples. The majority verdict said there are "almost intractable difficulties" in creating, through judicial diktat, a civil right to marry or a civil union as sought by the petitioners.
Implication: The judicial route to obtaining a right to civil union ends here. The last hope for queer couples now is the legislature.

2. No to adoption: The majority verdict, while admitting that same-sex couples aren't any less capable of becoming parents, said adoption rights can't be granted until same-sex marriages are recognised legally. In the absence of that, one partner could adopt a child as a single parent, without the other having any right over it. However, a memorandum issued by the Central Adoption Resource Authority (CARA) last year stalled that provision, stating that a single adoptive parent in a live-in relationship won't be deemed eligible to adopt a child. The majority SC verdict upheld this.
Implication: Same-sex couples, even if they live together, cannot adopt children as single parents.

What the minority verdict said

1. Yes to civil union: The minority verdict said queer couples have a legal right to enter into a civil union. The CJI issued guidelines for the protection of the rights and dignity of queer people. But since his was a minority verdict, these directives now remain on paper.

2. Yes to adoption rights: The minority verdict recognised the right of queer people to adopt children. CJI Chandrachud even declared last year's CARA memorandum *ultra vires*—that is, beyond its legal authority. ■



WHEN THE FLOODGATES OPEN Vehicles in Rangpo town, Sikkim, submerged in mud and slush brought by the floods

SIKKIM

WARNING FROM THE HIMALAYAS

By Arkamoy Datta Majumdar

A wall of water hurtling down mountains towards vulnerable valleys nestled within—this worst nightmare of Himalayan states came true for Sikkim on October 4 when the waters of the Lhonak lake in north Sikkim, situated at an altitude of 5,245 metres, burst forth and flooded regions in the Teesta river basin, killing many and washing away roads and bridges downstream. Moreover, the mass of water swept away the 1,200 MW Teesta III hydel power dam at Chungthang 65 km downstream and severely damaged the 510 MW Teesta V and the under-construction Teesta VI hydel projects further down the river. The cause was a Glacial Lake Outburst Flood (GLOF) possibly caused by heavy rains that triggered a landslide. A GLOF is a sudden release of water from a lake fed by glacier melt after a retreating glacier—the Lhonak glacier in this case—leads to its fast expansion. After the catastrophe, it was revealed that around half of the Lhonak lake has been drained out. To make matters worse, there was a paucity of an effective early warning system—a de rigueur procedure—and, during the mishap itself, a breakdown of coordination on the ground at the dams. However, the Sikkim disaster wasn't a complete surprise, for the rapidly expanding Lhonak lake had long been red-flagged by experts from central agencies as being particularly susceptible to a GLOF event. Also, locals' concerns over constructing power projects on the Teesta, in such an